ANN ARBOR DISTRICT LIBRARY BOARD
343 S. FIFTH AVENUE, ANN ARBOR, MI
MINUTES OF THE REGULAR MEETING
MONDAY, APRIL 29, 2024

24-060 I. CALL TO ORDER
Molly Kleinman, President

President Kleinman called the meeting to order at 6:00 p.m.

24-061 II. ATTENDANCE

Board Present: Lisa Campbell, Catherine Hadley, Molly Kleinman, Onna Solomon, Aidan Sova, Scott Trudeau
Board Absent: Jim Leija
Staff: Eli Neiburger, Len Lemorie, Sherlonya Zobel, Jodene Poirier (Recorder)

24-062 III. VOTE FOR CLOSED SESSION FOR DIRECTOR'S EVALUATION
(Item of action)
Roll call vote

Trustee Trudeau, supported by Treasurer Sova, moved to recess to a closed session for the director's evaluation.

A roll call vote was taken.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

Motion passed 6-0.

24-063 IV. RECESS TO CLOSED SESSION

The board moved into the closed session at 6:01 p.m

24-064 V. RECONVENE TO REGULAR MEETING AT 7:00 P.M.

President Kleinman reconvened to the regular meeting at 7:02 p.m.

24-065 VI. ATTENDANCE

Board Present: Lisa Campbell, Catherine Hadley, Molly Kleinman, Onna Solomon, Aidan Sova, Scott Trudeau

Board Absent: Jim Leija
Staff: Eli Neiburger, Len Lemorie, Sherlonya Zobel, Jodene Poirier (Recorder)

24-066 VII. APPROVAL OF AGENDA
(Item of action)

Treasurer Sova, supported by Trustee Trudeau, moved to approve the agenda.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

Motion passed 6-0.

24-067 VIII. CONSENT AGENDA
(Item of action)

CA-1 Approval of Minutes of March 18, 2024

CA-2 Approval of March 2024 Disbursements

Vice President Solomon, supported by Treasurer Sova, moved to approve the consent agenda.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

Motion passed 6-0.

24-068 IX. CITIZENS' COMMENTS

There were no citizens' comments.

24-069 X. FINANCIAL REPORTS
Eli Neiburger, Director

General Fund cash balance was at $8.6 million as of March 31. Tax receipts were about $1.68 million per month and receipts through March 31 were $20.25 million, or 100.27% of budget. Director Neiburger noted that the number will increase slightly each month as delinquent payments arrive and estimated that at year end, the receipts will be at about 100.5% of budget.

Unassigned Fund Balance was down after the $2.5 million transfer that was approved at the previous board meeting, leaving the balance at about $7.4 million, enough to fund approximately four months of operations.

As of March 31, the library had received 76.73% of budgeted revenues after 75% of the fiscal year. Expenditures were at 67.61% after 75% of the fiscal year. Director Neiburger stated that year-to-date, there was a surplus of approximately $1.8 million. Director Neiburger also noted that the surplus was expected to decrease closer to the end of the fiscal year and mentioned that there would be a resolution to transfer from the surplus to Rent Expense to account for a miscalculation of rent expenses later in the meeting.

Director Neiburger reported that at the Budget and Finance Committee meeting, the committee discussed FAADL becoming its own fund as opposed to a revenue and expense line that is budgeted for.

On the Statement of Revenues, Expenditures, and Changes, Director Neiburger pointed out the removal of FAADL as a revenue and expense in the Grants/Memorials line. Personnel costs were low at 74%. Benefits costs were better than expected and taxes were higher than expected. Building Rent was higher but would be adjusted later in the meeting as stated previously. Other expenses running higher than expected were Programming, Postage, Seminars/Conferences, and Software.

24-070 XI. COMMITTEE REPORTS

24-071 A. EXECUTIVE COMMITTEE
Molly Kleinman, Chair

President Kleinman reported that the committee met and spoke about the director's evaluation process. She stated that the process was underway and would be presented at the next public meeting.

24-072 B. BUDGET & FINANCE COMMITTEE
Aidan Sova, Chair

Treasurer Sova reported that the Budget and Finance Committee met and spoke about the budget adjustment for rent that Director Neiburger mentioned earlier. He stated that the committee also

discussed the proposed 2024-2025 budget

24-073 C. FACILITIES COMMITTEE
Scott Trudeau, Chair

Trustee Trudeau reported that the Facilities Committee met and discussed the ongoing negotiations for the air rights and easement agreement regarding the demolition project at 333 E. William St. Loss of staff parking due to the project was also discussed as part of the demolition project negotiations. Trustee Trudeau said that the committee also discussed lawn and snow contract bids. He noted that the committee was given an update on the Parkland Plaza construction project.

24-074 XII LIBRARY REPORT
Eli Neiburger, Director

Director Neiburger began the Library Report with the Stat of the Month, which was in regards to the door counts at all locations. He stated that the library had a very busy month and presented a line graph showing the daily door count over the past 30 days. Director Neiburger noted that the lines for Downtown and Westgate tracked each other very closely and the other three branches also tracked each other similarly. He said that the trends make it easy to see when there are big events and how the events affect attendance. Director Neiburger also spoke about how the number of room bookings affected the door counts. Overall, there were 223 AADL events with a total of nearly 13,000 attendees. The ages of attendees were 75% adults, 22% kids, and 3% teens. The average number of event attendees was 58 per event. Vice President Solomon asked if story times were included in the events and Director Neiburger answered in the affirmative. Vice President Solomon expressed her surprise and delight that there was an average of seven events per day across all library locations. President Kleinman then inquired about the self-bookings, if the library as a sense of what the bookings are for, and about no-shows. Director Neiburger stated that no-shows are pretty rare and explained that the stats reflect only pre-bookings, not same-day use. Vice President Solomon asked if small businesses use or book the rooms. Director Neiburger responded that small businesses use the rooms occasionally for meetings and most of the bookings are for educational purposes. President Kleinman asked how the ages of event attendees is known. Director Neiburger answered that patron ages are reported by the staff members in charge of the event based upon their observations

during the event. Director Neiburger added that for large events, the door count is used as the event attendee number.

Upcoming events included:

- AACME on Sunday May 5, Downtown
- Kylyn Festival in May & June
- FAADL Spring Bag Sale on Saturday May 18-Sunday May 19

For AADL Observes, Director Neiburger reported that AADL would be observing Asian American & Pacific Islander Heritage Month with in-person events, archived events, videos, and more.

For AADL in the Community, Director Neiburger began by explaining that at the request of the family, AADL livestreamed the funeral of John Sinclair in the Downtown lobby. He noted that AADL Archives has an extensive collection related to John Sinclair and the John Sinclair Freedom Rally in 1971. Director Neiburger then featured first graders from A2 STEAM who did a project examining the hidden history of their school. He explained that the students visited an Archives exhibit on display at Traverwood then took part in a panel discussion with community members involved in the creation of their school or attended the former Northside Elementary. Director Neiburger moved on to discussing a partnership with Washtenaw Intermediate School District regarding an exhibit of a Braille Enhanced StoryWalk on the accessible paved walkways of High Point School. Next, Director Neiburger mentioned that AADL would be working with several partners to present Solo Acts: A Solo Aging Symposium and Theatrical Performance about aging alone in Ann Arbor. The event would take place on May 10. The last subject that Director Neiburger presented for AADL in the Community was the new releases by AA200. He stated that there had been 30 new releases since the previous board meeting and briefly went through all 30 releases.

Production Technician Jackie Meloche was featured the Staff Spotlight.

Mention of the Month, Compliment of the Month, and Complaint of the Month were also reviewed.

24-075 XIII. OLD BUSINESS

22-080 A. PARKLAND PLAZA FACILITY UPGRADE UPDATE
Len Lemorie, Facilities Director

Facilities Director Lemorie began by stating that the Parkland Plaza project was behind by a week or two. He explained that the decision was made to delay the carpet installation, as there was still work to do that would produce a large amount of dirt and debris. Facilities Director Lemorie stated that the civil site work was on schedule and he stated that the windows were scheduled to be cut in the week after the board meeting. He noted that the project was on schedule to be completed by June 1. He then reported that the fixed offices, and cubicles for the open area were slated to be completed around the last week of May. FAADL shelving and office furniture was estimated to be completed around the beginning of June.

Facilities Director Lemorie then presented slides containing pictures of the project. He showed the completed wall that separates the office space from the warehouse and noted that the library plans to do put up a mural or some art pieces on the wall. Director Neiburger stated that there are plans for a new mural to replace the BLM mural on an exterior fence at the Downtown library and that the BLM mural would be permanently relocated to the wall in the warehouse. Facilities Director Lemoire then presented a slide showing the mezzanine for the geothermal pumps that houses the equipment on top with open space below. Next to the mezzanine, Facilities Director Lemorie showed the domestic outdoor air system that mixes the outdoor air with the indoor air. Next, he showed a slide of the finished first floor paper vault where the Archives will be. He mentioned that there will be a similar space on the second floor that had not been completed yet. The next slide showed the space for the fixed offices and the slide after that showed where the ADA access lift would be on the first floor. Facilities Director Lemorie moved onto a slide showing the first-floor cubicle area where the Collections department and bindery would be relocated to. The slide after that showed the second-floor cubicle area where the Archives cubicles would be located. The next few slides showed the staff kitchenette area and the FAADL bookshop. The last two slides showed the walk-in cooler.

Trustee Trudeau commented about how he had visited the space and about his excitement of seeing the project come together.

24-039 B. RESOLUTION TO ADOPT THE SUSTAINABILITY

STATEMENT AS POLICY
(Item of discussion and action)

Trustee Trudeau, supported by Secretary Hadley, moved to adopt the Sustainability Statement as policy.

Treasurer Sova stated that he was glad to help making informed decisions. He said that he was proud and excited for the statement and that it will be beneficial for the current and future boards, particularly from a budgetary perspective. Trustee Trudeau commented that after all of the discussion the board has had regarding the Sustainability Statement, he felt confident that the board was ready to adopt the statement. Vice President Solomon stated that she was happy to adopt the statement as well.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

24-076 XIV. NEW BUSINESS

24-077 A. RESOLUTION TO AWARD CONTRACT FOR LAWN MAINTENANCE AND SNOW REMOVAL SERVICES FOR THREE YEARS
(Item of discussion and action)
Len Lemorie, Facilities Director

Facilities Director Lemorie stated that the library was at the end of its lawn and snow contract and bids were solicited publicly via the AADL website. He said that three responses were received: DJ's, McIntosh (current contractor), and Great Outdoors. He read the annual bids from the three companies. DJ's bid was significantly lower than the other two and Facilities Director Lemorie said that he had some concerns about the low bid. He noted that the library used the same contractor in the past under their previous name "A.M. Services" and stated that he spoke to the project manager regarding the low bid. He said that project manager explained that the scope of the work had changed from what it had been in the past and that their company could complete the services for the lower dollar amount. Facilities Director Lemorie said that while he liked current vendor, he recommended that the board go with the lowest bid. Vice President Solomon asked how the large discrepancy could be understood. Facilities Director Lemorie responded by stating again that the scope of work had changed and gave examples such as: the mulch was no longer part of the

contract, a change regarding herbicides and pesticides no longer being used, and a lack of turf grass needing to be mowed. Secretary Hadley asked if any of the contractors were using electric motors in their equipment. Facilities Director Lemorie answered that while most of the handheld equipment was electric, larger equipment was mostly gas-powered. Trustee Trudeau asked if there was any way out of the contract if the library was not satisfied. Facilities Director Lemorie responded that there was a 30 day out for the library and for the contractor. He then asked if Parkland Plaza was included in the contract, to which Facilities Director Lemorie answered that it is not and that the plan has always been for library staff to maintain plaza landscaping and snow removal. President Kleinman then asked about how well DJ's compensated their employees. Facilities Director Lemorie read the hourly wages and benefits for their staff. Trustee Campbell stated that she appreciated the other board members asking questions to interrogate the bids to evaluate the best course of action. She mentioned that the recommendation represents a large cost savings and that she supported the recommendation based upon how the library values the stewardship of public funds.

Trustee Trudeau, supported by Trustee Campbell, moved to award the contract for lawn maintenance and snow removal services for three years.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

24-078 B. RESOLUTION TO AMEND THE 2023-2024 APPROVED BUDGET
(Item of discussion and action)

Director Neiburger explained that due to a GASB change in accounting where rent must be factored as a debt service, there was an error in budget development and a transfer of funds to rent expense was necessary to correct the error. He noted that the issue had been fixed for the upcoming fiscal year's budget.

Treasurer Sova, supported by Vice President Solomon, moved to amend the 2023-2024 approved budget.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova, Trudeau
NAYS: None

24-079

C. RESOLUTION TO AUTHORIZE THE DIRECTOR TO SIGN THE TEMPORARY CONSTRUCTION AND AIR RIGHTS EASEMENT AGREEMENT BETWEEN THE ANN ARBOR DISTRICT LIBRARY AND CORE ANN ARBOR WILLIAM, LLC
(Item of discussion and action)

Director Neiburger explained that the agreement was a fairly typical easement agreement giving permission to the construction company working on the demolition project at 333 E William to swing a crane without a live load in AADL's airspace. The agreement also included the construction of a canopy on the east side of the staff parking lot to protect staff vehicles from debris and to give the workers a laydown space for materials. Director Neiburger stated that the project was estimated to last 24-28 months and the library will be paid $80,000 for the right to use the library's space, which is roughly what it would cost to replace the parking lot. Director Neiburger also mentioned that the construction company would pay for parking lost in the lot due to the project. Trustee Campbell asked if loading dock operations would be affected and Director Neiburger responded that they would not. Facilities Director Lemorie added that once several functions moved to Parkland Plaza in the next couple of months, the situation would improve. Vice President Solomon asked when the work would begin affecting the library and Director Neiburger answered that the canopy would likely go up in late May or early June. Secretary Hadley asked if it was possible to make sure that the replacement parking provided be at the most adjacent area to the library. Director Neiburger responded that the only two options he could see were the Library Lane parking structure or the Fourth and William structure. Trustee Campbell commented that she had two concerns going into the project. One of her concerns was that the library would not be properly compensated for the project but felt as if the objective was met. Her other concern was mitigating against risk of the project taking longer than expected and stated that the agreement did include language to account for the duration of the project

Trustee Campbell, supported by Trustee Trudeau, moved to authorize the director to sign the temporary construction and air rights easement agreement between the Ann Arbor District Library and Core Ann Arbor William, LLC.

AYES: Campbell, Hadley, Kleinman, Solomon, Sova,

Trudeau
NAYS: None

24-080 D. DISCUSSION OF PROPOSED 2024-2025 BUDGET (p. 50)
(Item of discussion)

Director Neiburger began the discussion by stating that a final budget proposal would be brought to the May board meeting for approval, along with the final millage rate. He then spoke about the draft budget proposal. Director Neiburger explained that the tax collections assumed a 4% increase for tax collection revenue, which he noted was a conservative estimate.

Director Neiburger went over a change to Grants and Memorials in relation to FAADL being its own fund, as previously stated.

Director Neiburger said that the proposed budget showed an $818,000 increase in revenue.

Next, he spoke about expenditures. Total personnel costs showed an increase of $1.3 million over the course of the year. This was due to two factors: the addition of six new full-time positions and an increase of part-time hours. Director Neiburger then discussed an increase in budling rental of $245,500 versus the pre-corrected budget from the current fiscal year. He explained that the cost would actually be less than the current fiscal year because of the termination of the Archives lease and as of June 30, the library would no longer be paying Westgate Enterprises back for the buildout costs. He noted that the eight-year lease for Westgate was ending and the library would be entering the first of two five-year lease extensions. Similarly, Sweetwaters would be ending their first sublease and would also be entering the first of two five-year leases with AADL. Director Neiburger moved on to the budget increase for Programming, which was due to plans for more large events. The Materials Collection budget also increased due to a request for more funds by the Collections Manager. The minor equipment purchases decreased due to much of the minor equipment becoming major equipment. Director Neiburger discussed was a decrease the Capital Outlays line of $450,000. He explained that for the last fiscal year, several Plaza expenses were budgeted for that the library did not end up needing. The last expense discussed was medical insurance renewal. Director Neiburger stated that medical insurance rates were increasing by 6.7% and explained that there would be an increase in contributions by both the library and staff by 6.7%. He mentioned

that the cost would be very small out of pocket for staff.

President Kleinman stated in the past, the Materials budget was decreased because it was found that there was less spending on items such as DVDs. She asked why the budget was increased after being decreased. Director Neiburger responded that it was due to the spending going in a different direction, such as an increase in spending on licensing and Fifth Avenue Press productions. The initial decrease was also due to format changes and the decrease in production of physical media. Vice President Solomon then asked about the Other Operating Expenditures line and what it represents. Director Neiburger answered that it is a line for miscellaneous revenues and expenses that do not fall into any other category and he gave the example of costs associated with a subscription that are not the subscription itself. Trustee Campbell asked if there were any areas in the budget where the library was found wishing they had more funds or where the math appeared to be a bit tricky. Director Neiburger responded in the negative and stated that the library was in a good position. He stated that there were very few places when planning the budget where the library was put in a tough position.

24-081 XV. CITIZENS' COMMENTS

There were no citizens' comments.

24-082 XVI. ADJOURNMENT

President Kleinman adjourned the meeting at 8:01 p.m.

I hereby certify that the foregoing is a true and complete copy of the minutes adopted by the Board of Trustees of the Ann Arbor District Library, County of Washtenaw, State of Michigan, at a regular meeting held on April 29, 2024 and that said meeting was conducted and public notice of said meeting was given pursuant to and in full compliance with the Open Meetings Act, being Act 267, Public Acts of Michigan, 1976, as amended, and that the minutes of said meeting were kept and will be or have been made available as required by said Act.

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Catherine Hadley, Board Secretary